

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:
SUMMONS

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VANESSA SWINTON,

Plaintiff(s),

Plaintiff designates Bronx
County as the place of trial.

- against -

The basis of venue is:
Plaintiff's residence

THE CITY OF NEW YORK AND NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JUAN
ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY
MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER
HELIN MARTE SHIELD NO: 07937, P.O. JOHN DOE's
#1-4 and FDNY-EMT JOHN DOE's #1-4,

Plaintiff resides at:
880 Boynton Ave, Apt 16J
Bronx, NY 10473

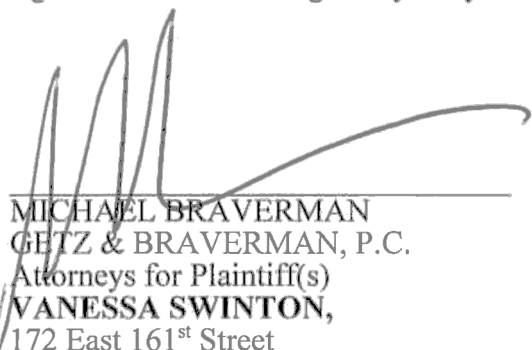
County of Bronx

Defendant(s).

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To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 26, 2018



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
VANESSA SWINTON,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9165

TO: **THE CITY OF NEW YORK**
100 Church Street
Bronx, New York 10007

NEW YORK CITY POLICE DEPT.
100 Church Street
New York, New York 10007

P.O. JUAN ESPINAL SHIELD NO: 10296

NYPD PSA 5

221 E 123rd Street
New York, NY 10035

P.O. FARRY MEDINARAMOS SHIELD NO: 11763

NYPD PSA 5

221 E 123rd Street
New York, NY 10035

P.O. HELIN MARTE SHIELD NO: 07937

NYPD PSA 5

221 E 123rd Street
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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VANESSA SWINTON,

Plaintiff(s),

- against -

THE CITY OF NEW YORK AND NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JUAN
ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY
MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER
HELIN MARTE SHIELD NO: 07937, P.O. JOHN DOE's
#1-4 and FDNY-EMT JOHN DOE's #1-4,

Defendant(s).

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Plaintiff, by his attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendant,
respectfully alleges, upon information and belief:

1. Upon information and belief, that tat all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York , including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, and or prior to the October 6, 2017, **JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937**, was employed by the defendant, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICE DEPARTMENT**, as a police officer.

4. That prior hereto on October 6, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
5. That a 50-H hearing has not been held yet.
6. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
7. That on October 6, 2017, Plaintiff **VANESSA SWINTON**, was falsely arrested and detained, located at East 120th Street and Madison, County of New York City and State of New York, when plaintiff was caused to sustained injuries when Defendant, **JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937**, was **placing handcuffs on Plaintiff's wrists**.
8. That said occurrence and the result thereof were due solely and wholly by reason of the negligence, carelessness and recklessness of the Defendants, its agents, servants, employees, licensees, designees and/or representatives in ownership, maintenance, management, supervision, charge and control of the aforesaid entity and personnel.
9. That there was no culpable conduct on the part of the claimant contributing thereto.

AS AND FOR A FIRST CAUSE OF ACTION

10. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "9", with the same force and effect as if more fully and completely set forth at length herein.

11. That on or about October 6, 2017 at approximately 3:30 p.m., while the Plaintiff was lawfully at the above mentioned location, when Defendant, **JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937**, without just cause or provocation and with a great force and violence, placed handcuffs on Plaintiff's wrist extremely tight, causing Plaintiff to sustained serious injuries, to both her wrist and her shoulders.
12. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff, **VANESSA SWINTON**, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact in the plaintiff, and defendants, in a hostile and/or offensive manner touched and accosted the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused severe injuries.
13. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, the Plaintiff suffered great bodily injury in and about re anatomy and was rendered sick, sore, lame and disable, and among other things, he suffered conscious pain and suffering and that he was otherwise damaged.
14. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "14", with the same force and effect as if more fully set forth herein.

16. That the defendant, **THE CITY OF NEW YORK**, was careless and reckless in hiring and retaining as and for its employee, the above named individuals: in that the said defendant's employees, the above named individual; in that the said defendant's employee lack the experience, department and ability to be employed by the defendant; in that the defendant failed to exercise due care and caution on its hiring practices, and in particulars, hiring the defendant employees who lacked the mental capacity and the ability to function as employees who lacked the capacity and the ability to function as employees of the aforementioned defendant; in that the defendant lacked the maturity, of said defendant employees when they hired them to be employees, and, in that the defendants, their agents, servants and employees were otherwise careless, negligent and reckless.
17. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.
18. That by reason of the aforesaid, the plaintiff was injured in mind and body and still suffers and upon information and belief, will continue to suffer great physical and mental pain , and he was rendered sick, sore, lame and disabled and so remains, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants, employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.

AS AND FOR A THIRD CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "18" , with the same force and effect as if more fully set forth herein.

20. That the defendant, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular the named defendants, **JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937**, and impart upon them the knowledge of the proper circumstances under which an arrest and search may be made; to control their tempers and exercise the proper deportment, behavior and conduct as representatives of their employers; and in that the defendants, their agents, servants and employees were otherwise reckless, careless and negligent.
21. That the aforesaid occurrence to wit: the assault and battery and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.
22. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and he was incapacitated from his usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff was been otherwise damaged.
23. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS OF THE FORTH CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and very allegation contained in paragraphs marked "1" through "23" , with the same force and effect as if more fully set forth herein.

25. That the defendants, their agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances in that they carelessly and recklessly without provocation and with great force and violence; negligently, carelessly and recklessly used the threat of physical force and actually used physical force upon the plaintiff thereat; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.
26. That the aforesaid occurrence, to wit: the assault and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the plaintiff.
27. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick sore, lame and disabled and so remains, and he was incapacitated from her usual occupation by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged.
28. VIOLATION OF THE CIVIL RIGHTS pursuant to U.S.C.A. §1981, 1983, 1985, in that claimant **VANESSA SWINTON** was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by one who, under color of a statute or regulation of a state, caused claimant to be so deprived and other and further violations of claimant's rights and privileges secured to claimant under the Constitutions of the United State of America and State of New York. In that **JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937**, falsely arrested, maliciously processed and used excessive force upon the plaintiff **VANESSA SWINTON**.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein on all causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
November 20, 2018

Yours, etc.



MICHAEL BRAVERMAN
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Attorneys for Plaintiff(s)
VANESSA SWINTON,
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9165

ATTORNEY'S VERIFICATION BY AFFIRMATION

MICHAEL BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GETZ & BRAVERMAN, P.C., attorneys of record for Plaintiff(s), **Vanessa Swinton**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
November 24, 2018



MICHAEL BRAVERMAN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

VANESSA SWINTON,

Plaintiff(s),

- against -

THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER JUAN ESPINAL SHIELD NO: 10296,, POLICE OFFICE FARRY MEDINARAMOS
SHIELD NO: 11763, POLICE OFFICER HELIN MARTE SHIELD NO: 07937, P.O. JOHN
DOE's #1-4 and FDNY-EMT JOHN DOE's #1-4,

Defendant(s).

AMENDED SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.

Attorneys for Plaintiff
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: **THE CITY OF NEW YORK**
100 Church Street
Bronx, New York 10007

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